

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1883

By: May

AS INTRODUCED

An Act relating to professions and occupations; amending 59 O.S. 2021, Section 2095.6, as amended by Section 4, Chapter 218, O.S.L. 2024 (59 O.S. Supp. 2024, Section 2095.6), which relates to mortgage lender licensing and registration; modifying the annual fee for mortgage broker licenses; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 2095.6, as amended by Section 4, Chapter 218, O.S.L. 2024 (59 O.S. Supp. 2024, Section 2095.6), is amended to read as follows:

Section 2095.6. A. Applicants for a license shall apply on a form as prescribed by the Administrator of Consumer Credit.

B. In order to fulfill the purposes of the Oklahoma Secure and Fair Enforcement for Mortgage Licensing Act, the Administrator is authorized to establish relationships or contracts with the Nationwide Multistate Licensing System and Registry or other entities designated by the Nationwide Multistate Licensing System

1 and Registry to collect and maintain records and process transaction
2 fees or other fees related to licensees or other entities or
3 individuals subject to the Oklahoma Secure and Fair Enforcement for
4 Mortgage Licensing Act.

5 C. In connection with an application for licensing as a
6 mortgage loan originator, the applicant shall, at a minimum, furnish
7 to the Nationwide Multistate Licensing System and Registry
8 information concerning the applicant's identity including:

9 1. Fingerprints for submission to the Federal Bureau of
10 Investigation and any governmental agency or entity authorized to
11 receive such information for a state, national and international
12 criminal history background check; and

13 2. Personal history and experience in a form prescribed by the
14 Nationwide Multistate Licensing System and Registry and the
15 Administrator to obtain:

16 a. an independent credit report obtained from a consumer
17 reporting agency defined in 15 U.S.C., Section
18 1681a(p), and

19 b. information related to any administrative, civil or
20 criminal findings by any governmental jurisdiction.

21 D. In connection with an application for licensing as a
22 mortgage broker or mortgage lender, the applicant shall, at a
23 minimum, furnish to the Nationwide Multistate Licensing System and
24

Registry information concerning each owner, officer, director or partner, as applicable including:

1. Fingerprints for submission to the Federal Bureau of Investigation and any governmental agency or entity authorized to receive such information for a state, national and international criminal history background check; and

2. Personal history and experience in a form prescribed by the Nationwide Multistate Licensing System and Registry and the Administrator to obtain:

a. an independent credit report obtained from a consumer reporting agency described in 15 U.S.C., Section 1681a(p), and

b. information related to any administrative, civil or criminal findings by any governmental jurisdiction.

E. For purposes of this section and in order to reduce points of contact which the Federal Bureau of Investigation may have to maintain for purposes of paragraph 1 and subparagraph b of paragraph 2 of subsection D of this section, the Administrator may use the Nationwide Multistate Licensing System and Registry as a channeling agent for requesting information from and distributing information to the United States Department of Justice or any governmental agency.

F. For the purposes of this section and in order to reduce the points of contact which the Administrator may have to maintain for

1 purposes of subparagraphs a and b of paragraph 2 of subsection D of
2 this section, the Administrator may use the Nationwide Multistate
3 Licensing System and Registry as a channeling agent for requesting
4 and distributing information to and from any source so directed by
5 the Administrator.

6 G. A license issued under the Oklahoma Secure and Fair
7 Enforcement for Mortgage Licensing Act shall be valid for a period
8 of one (1) year, unless otherwise revoked or suspended by the
9 Administrator as provided in the Oklahoma Secure and Fair
10 Enforcement for Mortgage Licensing Act.

11 H. The Administrator, on determining that the applicant is
12 qualified and upon payment of the fees by the applicant, shall issue
13 a license to the applicant. An applicant who has been denied a
14 license may not reapply for the license for sixty (60) days from the
15 date of the previous application. A new license issued on or after
16 November 1 shall be effective through December 31 of the following
17 calendar year.

18 I. A licensee shall pay the renewal fee on or before December
19 1. If the license is not renewed by December 1, the licensee shall
20 pay a late renewal fee as prescribed by rule of the Commission on
21 Consumer Credit. Licenses not renewed by December 31 shall expire
22 and the licensee shall not act as a mortgage broker, mortgage lender
23 or mortgage loan originator until a new license is issued pursuant
24 to the Oklahoma Secure and Fair Enforcement for Mortgage Licensing

1 Act. A license shall not be granted to the holder of an expired
2 license except as provided in the Oklahoma Secure and Fair
3 Enforcement for Mortgage Licensing Act for the issuance of an
4 original license.

5 J. A licensee shall prominently display the mortgage broker,
6 mortgage lender or mortgage loan originator license in the principal
7 place of business of the mortgage broker, mortgage lender or
8 mortgage loan originator and any branch office of the mortgage
9 broker or mortgage lender.

10 K. 1. An applicant for a mortgage broker or mortgage lender
11 license shall pay a fee of One Thousand Two Hundred Dollars
12 (\$1,200.00). This fee shall cover the application fee and
13 examination fee for all registered locations, including any changes
14 of address.

15 2. Mortgage broker ~~or mortgage lender~~ licenses may be renewed
16 by submitting an annual ~~assessment~~ fee of One Thousand Dollars
17 (\$1,000.00). Mortgage lender licenses may be renewed by submitting
18 an annual assessment fee. The annual assessment fee shall:

- 19 a. be based on the dollar volume of loans originated for
20 residential real property located in Oklahoma during
21 the twelve-month period ending June 30,
22 b. be based on the dollar volume of loans serviced for
23 residential real property located in Oklahoma as
24

1 reported on the Q2 mortgage call report for the period
2 ending on June 30,

3 c. be determined by applying a factor of eight-
4 thousandths of a percent (0.008%) of the dollar volume
5 of loans originated and the dollar volume of loans
6 serviced in Oklahoma, and

7 d. cover:

8 (1) the renewal fee for the principal office and any
9 branches, and

10 (2) any examination-related costs incurred by the
11 Department of Consumer Credit.

12 3. Beginning November 1, 2024, the annual assessment fee shall
13 not be:

14 a. less than One Thousand Dollars (\$1,000.00),

15 b. more than Forty Thousand Dollars (\$40,000.00) for the
16 portion of the assessment calculated according to
17 subparagraph a of paragraph 2 of this subsection, nor

18 c. more than Seventeen Thousand Five Hundred Dollars
19 (\$17,500.00) for the portion of the assessment
20 calculated according to subparagraph b of paragraph 2
21 of this subsection.

22 4. Beginning November 1, 2025, the annual assessment fee shall
23 not be:

24 a. less than One Thousand Dollars (\$1,000.00),

- 1 b. more than Forty Thousand Dollars (\$40,000.00) for the
2 portion of the assessment calculated according to
3 subparagraph a of paragraph 2 of this subsection, nor
4 c. more than Twenty-seven Thousand Five Hundred Dollars
5 (\$27,500.00) for the portion of the assessment
6 calculated according to subparagraph b of paragraph 2
7 of this subsection.

8 5. Beginning November 1, 2026, the annual assessment fee shall
9 not be:

- 10 a. less than One Thousand Dollars (\$1,000.00),
11 b. more than Forty Thousand Dollars (\$40,000.00) for the
12 portion of the assessment calculated according to
13 subparagraph a of paragraph 2 of this subsection, nor
14 c. more than Thirty-five Thousand Dollars (\$35,000.00)
15 for the portion of the assessment calculated according
16 to subparagraph b of paragraph 2 of this subsection.

17 6. Beginning November 1, 2027, the annual assessment fee shall
18 not be:

- 19 a. less than One Thousand Dollars (\$1,000.00),
20 b. more than Forty Thousand Dollars (\$40,000.00) for the
21 portion of the assessment calculated according to
22 subparagraph a of paragraph 2 of this subsection, nor
23
24

1 c. more than Forty Thousand Dollars (\$40,000.00) for the
2 portion of the assessment calculated according to
3 subparagraph b of paragraph 2 of this subsection.

4 7. A late renewal fee shall be as prescribed by rule of the
5 Commission on Consumer Credit.

6 8. Branch offices shall be registered with the Department and
7 shall be accompanied by an initial registration fee of One Hundred
8 Fifty Dollars (\$150.00).

9 9. A fee as prescribed by rule of the Commission on Consumer
10 Credit shall be charged for each license change, duplicate license
11 or returned check.

12 10. A fee as prescribed by rule of the Commission on Consumer
13 Credit shall be paid by applicants and licensees into the Oklahoma
14 Mortgage Broker and Mortgage Loan Originator Recovery Fund as
15 provided for in Section 2095.20 of this title for each initial
16 application and each renewal application.

17 11. Each additional trade name used by a licensee shall be
18 registered with the Department and shall be accompanied by an
19 initial registration fee of One Hundred Fifty Dollars (\$150.00).

20 12. The Administrator of Consumer Credit may reinstate a
21 license within thirty-one (31) days of the expiration of the license
22 if the licensee pays the assessment fees and a reinstatement fee of
23 Five Hundred Dollars (\$500.00). A licensee shall not be reinstated
24 when the renewal application, fees, or any required information is

1 received on or after February 1 of the following year that the
2 renewal application was due.

3 13. The Administrator may reduce annual assessment fees on a
4 pro rata basis for a specific renewal period by reducing the factor
5 applied to the dollar volume of loans originated and serviced. The
6 Administrator shall notify licensees of an annual assessment fee
7 reduction prior to November 1 of the specific license renewal
8 period. An annual assessment fee does not include an initial
9 license fee for purposes of this subsection.

10 L. 1. An applicant for an initial mortgage loan originator
11 license shall pay a fee of Four Hundred Fifty Dollars (\$450.00).

12 2. An applicant renewing a mortgage loan originator license
13 shall pay a fee of Two Hundred Fifty Dollars (\$250.00).

14 3. A late renewal fee shall be as prescribed by rule of the
15 Commission on Consumer Credit.

16 4. A fee as prescribed by rule of the Commission shall be paid
17 by applicants and licensees into the Oklahoma Mortgage Broker and
18 Mortgage Loan Originator Recovery Fund, as provided in Section
19 2095.20 of this title, for each initial application and each renewal
20 application.

21 SECTION 2. This act shall become effective November 1, 2025.
22

23 60-1-12182 TKR 01/14/25
24